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Case Number: 24STCV08657 Hearing Date: August 10, 2026 Dept: 510

No. 2 – Wilshire Law Firm, PLC v.

Ahmmed Ilyas Akbari and Kennedy Wilshire PC

Plaintiff Wilshire Law

Firm, PLC's Request for Default Judgment

Plaintiff Wilshire Law

Firm, PLC requests court judgment by default against Defendants Ahmmed Ilyas

Akbari and Kennedy Wilshire PC.

As an

initial matter, the Court notes that Defendants filed two briefs in opposition to the default judgment packet—one on June 4, 2026, and the other on August 3, 2026. Because Defendants are in default, they are not entitled to file these briefs. "The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered." (Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc. (1984) 155 Cal.App.3d 381, 385.) As such, their contents will not be considered by the Court and the two briefs are stricken.

Sufficiency of Evidence

The Court acknowledges

that Plaintiff requests a large damage award: \$7,861,365.60 in compensatory damages, \$1,823,261.55 in prejudgment interest, and \$21,092.41 in costs. "Even when the allegations of a complaint do support the judgment a plaintiff seeks, he is not automatically entitled to entry of that judgment by the court, simply because the defendant defaulted. Instead, it is incumbent upon the plaintiff to

prove up his damages, with actual evidence.” (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 272.) “When determining if the evidence at the [default] prove-up hearing supports the requested damages, the court’s role is serious, substantive, and often complicated.” (LCPFV, LLC v. Somatdary Inc. (2024) 106 Cal.App.5th 743, 754.)

Here, the Court finds

Plaintiff presents sufficient evidence showing it is entitled to the fee award for the five settled cases in the amount of \$5,201,618.33. In support of this award, Plaintiff submits evidence of costs incurred on each case, the clients’ respective retainer agreements with Plaintiff, and copies of the release and/or distribution agreements. This evidence is sufficient to support the requested damage amounts for the settled cases.

However, Plaintiff

presents insufficient evidence showing it is entitled to the fee award for the nine unsettled cases in the amount of \$2,659,747.27. Here, Plaintiff relies on an “estimated case value,” which is “the expected settlement [Plaintiff] would have received had the case remained at the firm with [them]. For expected settlement value, [Plaintiff uses] Mr. Akbari’s own valuations from when he was a contractor at the firm.” (Mims Decl., ¶ 37.)

Here, this amount was not

ascertained with reasonable certainty as required. “[W]here the operation of an established business is prevented or interrupted, as by a ... breach of contract ..., damages for the loss of prospective profits that otherwise might have been made from its operation are generally recoverable for the reason that their occurrence and extent may be ascertained with reasonable certainty from the past volume of business and other provable data relevant to the probable future sales.” (Sargon Enterprises, Inc. v. University of Southern California (2012) 55 Cal.4th 747, 774 [quoting Grupe v. Glick (1945) 26 Cal.2d 680, 692].)

Plaintiff’s lost profit

projection is speculative, as it only relies on Akbari’s personal valuations of what he believed the case’s value was at an unspecified point in time based on unspecified information. Plaintiff submits no supporting evidence showing that these case valuations are based on an accurate assessment of past business or other relevant considerations. Indeed, in the unverified Second Amended Complaint,

Plaintiff takes issue with Defendant's competence and veracity. (See, e.g., SAC ¶ 2 (noting "underperformance" by Defendant, and Defendant "falsely agreed, and made false statements ..."), ¶ 16 (Defendant violated policies relating to "satisfactory completion of litigation services"), ¶ 17 (Defendant's "performance was consistently below what Plaintiff expected").) The Court cannot rely on these speculative valuations, especially when Plaintiff, as the party proffering them, raises serious questions about the source of those valuations.

To recover the amount of damages requested for unsettled cases, Plaintiff must present admissible and credible evidence at a prove-up hearing. In the alternative, Plaintiff can revise its default judgment fee award request to seek only the \$5,201,618.33 amount for settled cases plus costs and interest, and submit a new proposed judgment with revised prejudgment interest calculations and cost award.

Disposition

Plaintiff Wilshire Law

Firm, PLC's request for default judgment is denied without prejudice.